

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN INDIA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in India, grounded in the environmental-clearance and constitutional system and documented campaigns

This guide uses the Indian legal terms you will actually encounter (Environmental Clearance, gram sabha, PIL, the NGT, and so on), each defined on first use and in the Glossary. It describes the national framework; states have their own rules and authorities, so check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, and each is defined in the **Glossary at the end of this guide.**

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in India. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. In 2013, after years of resistance, the **Dongria Kondh** people stopped **Vedanta's** bauxite mine in the **Niyamgiri** Hills of Odisha — because the Supreme Court held that their village councils, the **gram sabhas**, had to consent, and all twelve said no. Across the country, communities, public-spirited citizens using **Public Interest Litigation (PIL)**, and the **National Green Tribunal (NGT)** have forced projects to be refused, halted, redesigned, or abandoned. These outcomes were not inevitable; communities made them happen.

But most communities don't know **HOW** to make opposition effective. They attend one **public hearing**, then give up. They assume "the authority will refuse it" without building public pressure or going to the NGT. They generate coverage without a strategy. They organise people and then lose them to burnout after four months.

This guide shows what actually works — in the Indian system.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

STEP 1: TARGET IDENTIFICATION

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STEP 2: DOCUMENTATION (proof of harm)

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STEP 3: LOCAL OPPOSITION BUILD (organised community)

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STEP 4: LEGAL CHALLENGES (Green Tribunal / court pressure)

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STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)
Each step amplifies the others
Multi-tactic pressure compounds toward victory

Why the legal step matters so much here: India gives communities an unusually powerful set of levers. The **National Green Tribunal** is a dedicated environmental court that can hear a challenge quickly, cheaply, and with scientific expertise, and can suspend a clearance or order compensation. Through **Public Interest Litigation**, any public-spirited person can move a **High Court** or the **Supreme Court** on behalf of a community that cannot easily approach the court itself. Where forest land or tribal rights are involved, the **gram sabha** (the village assembly) has a decisive say under the **Forest Rights Act 2006** — the lever that stopped the Niyamgiri mine. And the **Right to Information Act 2005 (RTI)** lets any citizen prise the file open. No Indian campaign should be planned without understanding these.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because the government is pushing investment and infrastructure, because the developer's own study drives the assessment, or because appraisal committees rarely say no.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins suspensions, conditions, redesigns, and delay. Where there is genuine misconduct — bribery, an undeclared interest, the offences under the **Prevention of Corruption Act** — that is a different and more serious problem, covered in Section 11.

This is covered in Sections 10 and 11. Read them before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in India, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

India is a union of states, and the environment is a shared responsibility.

- **The Union (central) government, through the Ministry of Environment, Forest and Climate Change (MoEFCC).** It grants **Environmental Clearance** for large (Category A) projects, approves the diversion of **forest** land under the **Forest (Conservation) Act**, and sets national rules.
- **The state government, through the State Environment Impact Assessment Authority (SEIAA) and the State Pollution Control Board (SPCB).** The SEIAA grants Environmental Clearance for smaller (Category B) projects; the SPCB runs the **public hearing** and issues the pollution "consents" (Consent to Establish / Consent to Operate) under the Water and Air Acts.
- **Local self-government** — in rural areas the **gram panchayat** and, crucially, the **gram sabha** (the assembly of all adult villagers); in cities the municipal body and the development authority (via the master plan).

So which body decides *your* project?

- A large mine, thermal power plant, big dam, port, highway, or airport → **Environmental Clearance from the MoEFCC** (Category A), plus forest and wildlife clearances if relevant.
- A smaller industrial or infrastructure project → **Environmental Clearance from the state (SEIAA)** (Category B), plus **SPCB** consents.
- Anything on **forest** land or affecting **Scheduled Tribes** and other forest-dwellers → forest clearance under the Forest (Conservation) Act, and the **consent of the affected gram sabhas** under the **Forest Rights Act** — a decisive, and often overlooked, point of leverage.
- Anything in a **coastal zone** (CRZ clearance) or near a national park/sanctuary (wildlife clearance from the National/State Board for Wildlife).

The expert bodies

- **The Expert Appraisal Committee (EAC)** at the centre, and the **State Expert Appraisal Committee (SEAC)** in the states — the technical committees that appraise the impact assessment and recommend grant or refusal of Environmental Clearance.
- **The Forest Advisory Committee (FAC)** — advises the MoEFCC on forest diversion.
- **The State Pollution Control Boards (SPCBs)** — conduct the public hearing and monitor and enforce pollution law.

How a decision is actually made — the clearance journey

For a project needing Environmental Clearance, the process (under the **EIA Notification 2006**) runs in four stages:

1. **Screening** — deciding whether a full impact study is needed.
2. **Scoping** — the EAC/SEAC sets the "Terms of Reference" for the study.
3. **Public consultation** — the **EIA report** and its summary are made public (in the local language), and the **SPCB holds a public hearing** at or near the site, where affected people can raise objections **on the record**. This is the one stage where citizens engage directly — treat it as decisive.
4. **Appraisal** — the EAC/SEAC recommends grant or refusal, and the MoEFCC or SEIAA decides.

Forest land needs separate **forest clearance** under the Forest (Conservation) Act, and — where forest-dwellers are affected — **the consent of the gram sabhas** under the Forest Rights Act. A **weak or misleading EIA, a defective public hearing, or a missing gram sabha consent** are among the strongest grounds to stop or delay a project.

The rulebook — the laws that decide the outcome

- **The Constitution** — the right to life (Article 21), which the Supreme Court has read to include a right to a healthy environment; the directive to protect the environment (Article 48A) and the citizen's duty to do so (Article 51A(g)); and special protection for tribal areas (the Fifth and Sixth Schedules).
- **The Environment (Protection) Act 1986 and the EIA Notification 2006** — the clearance regime.
- **The Forest (Conservation) Act 1980** — central approval to divert forest land.
- **The Forest Rights Act 2006 and PESA 1996** — the rights of forest-dwellers and the powers of the **gram sabha**, including consent to forest diversion.
- **The Water Act 1974, the Air Act 1981, and the Wildlife (Protection) Act 1972** — pollution consents and wildlife clearance.
- **The NGT Act 2010 and the RTI Act 2005** — the Green Tribunal, and the right to information.

Follow the money — why the system often leans toward "yes"

- **States** compete hard for investment and the jobs, revenue, and mining **royalties** a project brings, so there is often intense official pressure to approve.
- **The central government** promotes mining, energy, and infrastructure and frames projects as national priorities.
- **Developers** are often large companies with the resources to fund the studies and the lawyers who prepare and defend the project.
- The technical committees rarely refuse: most projects that reach appraisal are cleared, often with conditions.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The National Green Tribunal (NGT)** — a dedicated environmental court that can hear challenges to Environmental Clearances and pollution and forest-diversion decisions, suspend them, and order compensation and restoration. (Note: it does **not** have jurisdiction over the Forest Rights Act or the Wildlife (Protection) Act — those go to the High Courts and the Supreme Court.)
- **The High Courts and the Supreme Court** — through **PIL**, they hear environmental and rights cases, including forest-rights and tribal-land matters.
- **The Comptroller and Auditor General (CAG)** — audits government, and its reports have exposed major scandals (see Section 11).
- **The anti-corruption bodies** — the **Lokpal** and state **Lokayuktas**, the **Central Vigilance Commission (CVC)**, and the **Central Bureau of Investigation (CBI)**.
- **The Information Commissions** — enforce the **RTI Act**.

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In India, the variable most likely to push a campaign above these ranges is a well-founded challenge on a real defect — a missing **gram sabha consent**, a defective **public hearing**, or a misleading **EIA** — taken to the **NGT** or, for forest and tribal rights, to a **High Court** or the **Supreme Court** (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (INR)	What "Success" Means
Documentation Only	5-10%	3-4 months	₹1,50,000	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	₹4,00,000	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	₹1,00,000-6,00,000	Slow; strong at the NGT if the defect is real
Media Only	10-15%	3-6 months	₹1,50,000	Public knows, but no action

Docs + Opposition	25-35%	12 months	₹5,50,000	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	₹6,00,000	Stronger legal arguments, slower
Opposition + Legal	35-45%	12-18 months	₹8,00,000	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	₹5,50,000	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	₹8,50,000	Clearance suspended/refused/modified or project delayed

Key insight: All five steps together = 3-4x more effective than any single step.

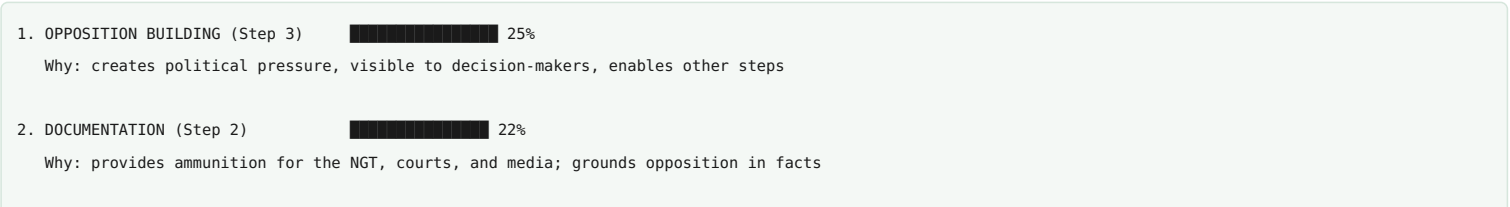
A note on legal cost: the NGT is deliberately cheaper and faster than a regular court (a modest filing fee), and PIL can be brought at low cost by a public-spirited person or a community group — so the "Legal" figures are not a hard floor. Legal-aid and pro bono environmental lawyers can bring the cost down further.

Effectiveness Visualization



One important point: a single clear legal defect — most powerfully a missing **gram sabha consent** on forest or tribal land, a **public hearing** that was skipped or stage-managed, or a misleading **EIA** — can lead the **NGT** or a constitutional court to suspend a clearance even where the politics favour the project, because it is applying a legal standard the authority cannot ignore. (Clearances can also be re-granted after the defect is cured, so an early win may need defending.)

Step Importance Ranking (When All Combined)



3. MEDIA STRATEGY (Step 5)

20%

Why: makes opposition/legal/documentation visible, creates political cost
4. LEGAL CHALLENGES (Step 4)

18%

Why: the NGT and courts can suspend a clearance – and hold the consent and EIA levers
5. TARGET ID (Step 1)

15%

Why: foundation – if wrong, everything fails

Real insight: a large, organised, visible community that has also put well-argued objections on the record at the **public hearing** and, where forest or tribal rights are involved, insisted on the **gram sabha's** say, is far more powerful than perfect documentation or a brilliant legal argument standing alone.

STEP 1: TARGET IDENTIFICATION

Time to complete: Weeks 1-4
Cost: ₹0
Outcome: A clear picture of what you're fighting, who decides, and when the decision is final

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: "Environmental damage"
But: "The mine takes 60 hectares of forest that the village holds **community forest rights** over, and destroys the habitat of a species protected under the Wildlife Act."

Not: "Pollution"
But: "The plant will emit an estimated [X] of fine particles over the nearest homes of 1,500 people, in an area already exceeding the air-quality standard."

Not: "Community harm"
But: "The project submerges the farmland and sacred grove of [village] and cuts [number] families' access to the river."

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. Harm to **forest** land, **tribal** rights, a **wildlife** habitat, or a **coastal zone** also opens a **specific legal front** (gram sabha consent; forest, wildlife, or CRZ clearance).

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **The MoEFCC** (via the **EAC**) — for Environmental Clearance of large (Category A) projects, and for forest diversion.
- **The state SEIAA** (via the **SEAC**) — for Environmental Clearance of smaller (Category B) projects.
- **The State Pollution Control Board (SPCB)** — for the public hearing and pollution consents.
- **The affected gram sabhas** — for consent to forest diversion under the Forest Rights Act.

Write it down concretely: "The EAC will appraise the Environmental Clearance after the SPCB's public hearing on [date]. Forest land is involved, so the gram sabhas of [villages] must consent, and forest clearance from the MoEFCC is required."

Question 3: What Specific Action Stops It?

Not: "Stop the project"
But: "Persuade the EAC to refuse the Environmental Clearance, or the gram sabhas to withhold consent" — or, if refusal is unrealistic, "obtain strict conditions, real rehabilitation, and a redesign."

Not: "Protect the environment"
But: "Show the **public hearing** was defective, the **EIA** misleading, or the **gram sabha consent** never obtained, and take it to the **NGT** (or, for forest/tribal rights, to the **High Court**)."

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the process is unlawful, become the ground for the NGT or a court to act.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. Map every date: when the **draft EIA** is published, the **public hearing**, the EAC/SEAC appraisal, the grant of each clearance (environmental, forest, wildlife, CRZ), and the **windows to challenge** — an appeal to the **NGT**

must usually be filed **within 30 days** (extendable to 90) of the clearance. Don't wait: file objections at the public-hearing stage, and be ready to move the NGT quickly.

Question 5: Are There Documented Financial or Policy Pressures?

- This is the tilted-system assessment question. Know it BEFORE you organise:
- Is the project a declared **national priority** or a big state investment, hardening political backing?
 - Is the **EIA** funded and written by the developer's consultant only?
 - Does the state depend on the project for revenue, jobs, or mining **royalties**?
 - Is the developer a large company with deep resources for studies, lawyers, and appeals?
 - Has the project already begun works and is seeking a **post-facto** (after-the-fact) clearance?

Why this matters: if strong "national priority" backing or developer-controlled studies are present, opposition must overcome different barriers (Section 10). It doesn't mean opposition can't work — it means realistic expectations and, often, a focus on the **gram sabha consent**, the **public hearing**, and the **EIA** defects, on conditions, and on the **NGT**, rather than a straight political refusal.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Time to complete: Months 1-4
Cost: ₹1,50,000-2,50,000 (INR)
Outcome: Three polished reports (30+ pages total) showing specific, quantified harms

Success Rate (Documentation Alone): 5-10%
Success Rate (Documentation + Opposition): 25-35%
Success Rate (Documentation + Opposition + Legal + Media): 60-75%

The Three Documentation Layers

Documentation turns vague opposition ("This is bad") into undeniable evidence ("This specific harm will occur to these specific people/places at these specific costs"). Success comes from three layers working together.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

What it is: documentation of existing conditions BEFORE the project begins — including who lives on and uses the land, and how.

Why it matters: developers claim "the land is barren" or "already degraded." Baseline documentation proves what — and who — was there, and it cannot be reconstructed later.

Documented case — the Dongria Kondh and the Niyamgiri bauxite mine

Vedanta, in a joint venture with the state-owned Orissa Mining Corporation, planned to mine **bauxite** from the **Niyamgiri** Hills of Odisha to feed an alumina refinery. Its supporters treated the hilltop as an ore body. The **Dongria Kondh** made that impossible. They documented — and asserted, through decades of organising as the *Niyamgiri Suraksha Samiti* — their living relationship with the hills: that Niyamgiri is the abode of their deity *Niyam Raja*, that its forests and streams are the source of their farming and food, and that mining would destroy a way of life and a place of worship. That record of cultural, religious, and forest rights went to the heart of the case.

It changed the outcome. In *Orissa Mining Corporation v. Ministry of Environment & Forest* (18 April 2013), the **Supreme Court** held that the State holds natural resources in trust and that the affected communities must decide: it directed that **twelve gram sabhas** determine whether the mine would affect their religious and **forest rights**. Between July and August 2013, **all twelve village assemblies rejected the mine**. In 2014 the **MoEFCC** refused the final clearance. The community's own documented account of what the hills meant to them was the thing the Court and the gram sabhas acted on. (The hills have faced renewed mining proposals since, so the win has had to be defended — a reminder that a victory is rarely the end.)

Why it matters for you: the Dongria Kondh's documentation — who lived there, and what the place meant — was decisive. Documenting existing conditions, including human occupation, use, and cultural ties, is the foundation of everything that follows.

Building your own baseline (typical process). Document existing conditions before the project starts, because a developer will claim the land is "barren" and baseline cannot be reconstructed later. A workable approach: surveys across a season cycle of the project area plus reference sites; a species inventory with GPS locations of key habitat, flagging anything protected under the Wildlife Act that the developer's **EIA** omitted; a record of **forest** use and of any **Scheduled Tribe** or other forest-dweller occupation, farming, grazing, sacred sites, and collection of minor forest produce (the basis of **community forest rights**); proximity to any protected area, forest, or coastal zone; and water and air baselines (quality and seasonal variation). Typical cost is around ₹1,50,000-2,00,000 for a technical consultant/ecologist, GPS, and testing — reducible with knowledgeable community members, university researchers, and naturalists. Dated, same-spot photographs and geo-referenced maps make it credible.

Layer 2: Impact Analysis

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just "something bad" but "specifically THIS BAD in THIS WAY" — and it maps directly onto what the **EIA** must properly assess.

Use the developer's own words and the assessment rules. Powerful, documentable weak points in Indian assessments include:

- **A misleading or copied EIA.** The **EIA report** must genuinely assess the project's significant impacts and alternatives. EIAs that understate impacts, omit them, or even copy-paste from other projects have been caught and used to quash or suspend clearances.
- **A defective public hearing.** The **public hearing** must be genuinely held, with the report available in the local language and objections properly recorded. A skipped, relocated, or stage-managed hearing is a strong, specific defect.
- **Missing gram sabha consent.** Where **forest** land or **forest-dwellers** are affected, the consent of the affected **gram sabhas** under the Forest Rights Act is required — its absence sank the Niyamgiri mine and has stopped others.

Convert each of the developer's admissions ("temporary disturbance," "limited diversion") into a quantified prediction against your baseline.

Outcome (illustrative): an **EIA** or **public hearing** found defective, or a **gram sabha consent** shown to be missing, can lead the **NGT** or a court to suspend the clearance — adding months or years, or stopping the project.

Layer 3: Health & Economic Impact Documentation

What it is: quantification of human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. "X hectares affected" matters less than "an estimated 45 additional respiratory cases a year, and ₹X of health-system cost" — or "the forest produce and farmland that sustain 200 families destroyed."

Method: use recognised air-quality or water modelling and the public-health literature to translate emissions or land loss into health and livelihood outcomes, then attach costs — additional respiratory and cardiovascular cases, lost farming, grazing, fishing, and forest-produce income, and total annual and lifetime cost for the affected population.

Outcome (illustrative): an independent health-and-livelihood analysis can move a district administration, feed the NGT case, and force conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage a technical consultant or ecologist (or use knowledgeable community members, university researchers, and naturalists); document conditions AND human occupation/use, forest rights, and sacred sites. **Deliverable:** a 20-30 page baseline report with species/habitat inventory, a record of forest and tribal use, water/air data, dated photographs, and geo-referenced maps.

Phase 2: Impact Analysis (Months 2-3)

Obtain the **EIA report** and the clearance file (use the **RTI Act** if needed); identify specific impacts; test the study against the rules (completeness, public hearing, gram sabha consent, forest/wildlife/CRZ). **Deliverable:** a 20-30 page impact analysis with quantified predicted impacts, comparison to baseline, and the developer's own admissions quoted back.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health and livelihood impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the clearance.
- **Only environmental data.** Add health, livelihood, and human-occupation impacts — the arguments that move decision-makers, the NGT, and the public.
- **No independent check.** A report the authority can dismiss as "activist material" is far stronger after an independent expert or a university reviews it.
- **Ignoring the developer's own admissions.** Their **EIA report** is your best source; quote it against itself. Use the **RTI Act** to get it and the file.

Documentation Budget Breakdown (INR)

Item	Cost	Notes

Technical consultant / ecologist (baseline + species ID)	₹1,20,000	Wildlife-protected-species and habitat survey
GPS / survey equipment	₹15,000	Mapping/documentation
Water/air testing	₹20,000	Sampling across seasons
Independent / university expert review	₹25,000	Credibility
Printing/RTI/translation	₹10,000	Local-language copies for decision-makers
TOTAL	₹1,90,000	Reducible with university partners and community members

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Time to complete: Months 2-6 (foundation), 6-12 (sustained)
Cost: ~₹4,00,000 (INR) for a full year
Outcome: 50-100 core people, 5-10 organisations, sustained organisation

Success Rate (Opposition Alone): 15-20%
Success Rate (Opposition + Documentation + Legal + Media): 60-75%

Critical Insight About Organising

Most opposition campaigns fail not because they can't build opposition, but because opposition burns out after 4-8 months. You need structures that prevent it.

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don't join movements from pamphlets; they join from relationships. Identify the 15-20 people most affected or interested. **Talk to** each in person for an hour. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do. Each person has a different concern (land, forest, water, health, a sacred site, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern, not around "opposition":

- **Land/livelihood group** — farmland, grazing, forest produce, displacement and rehabilitation
- **Water group** — the river, groundwater, submergence, contamination
- **Health group** — air quality, dust, water-borne disease
- **Rights group** — **forest rights**, **gram sabha** consent, sacred sites, tribal-area protections

Each group meets regularly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Use the Gram Sabha and Form an Association

Two vehicles matter. First, in rural and tribal areas the **gram sabha** is not just a meeting — it is a statutory body whose **resolutions** carry legal weight (its consent is required for forest diversion). Getting the affected gram sabhas to pass **resolutions** against the project is one of the strongest things a community can do. Second, a **registered society or trust** can speak for the community, receive donations, and take a matter to court; partner with established local organisations, farmers' or tribal unions, and — where relevant — an environmental NGO.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (*jan sunwai* / community meeting)

Hold a community meeting where people set out their concerns to themselves, to the local officials and elected representatives, and to press. A serious, informational meeting carries weight. Typical shape: welcome → project explanation → community concerns (each person a few minutes) → expert Q&A (an ecologist, a health voice, a lawyer) → next steps.

Step 2b: Opposition Materials (Factsheets)

One page, in the **local language**. Decision-makers and neighbours won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the evidence base → contact/resources. Print widely; distribute at markets, the panchayat office, temples/places of worship, health centres; post a digital version. Cost: ~₹8,000.

Step 2c: The Public Hearing and Gram Sabha Resolutions (the decisive record)

Two things matter most here. First, turn people out to **speak and file written objections at the SPCB public hearing** (and demand a proper one, in the local language, if it is skipped or relocated), each raising real grounds — a misleading **EIA**, harm to forest or wildlife, ignored displacement. Second — where forest or tribal rights are involved — get the affected **gram sabhas to pass formal resolutions** recording the community's objection and any withholding of consent. Together these build a record the **NGT** and the courts take seriously. Cost: ~₹2,000.

Step 2d: Media Coverage at Launch

Release data + hearing objections + gram sabha resolutions = a story. (Full press-release example is in Section 9, 9G.) Contact reporters, then send the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental and rights organisations — established groups and networks, university research centres, tribal and forest-rights organisations, farmers' unions, fishers' associations, and legal-aid groups — plus businesses and tourism operators that lose from the project. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

- Tailored asks:
- **An environmental / legal-aid group:** "We need help analysing the **EIA** and preparing an **NGT** appeal — can you help?"
 - **A university group:** "Would your researchers assess the health or hydrology impacts independently?"
 - **A forest-rights / tribal organisation:** "Help us secure and document the **gram sabha resolutions** and the community forest-rights claim."
 - **Farmers / forest-dwellers:** "This takes the land and the forest we depend on — will you speak at the hearing and pass the resolution?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: environmental analysis to the NGO/university; forest and tribal rights to the forest-rights organisation and the gram sabha leaders; livelihood to the farmers'/fishers' groups; media to whoever has the contacts; the legal track to the lawyer and the registered society. Sequence activities so each builds momentum (coalition launch → data release → gram sabha resolutions → public hearing).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline.

Step 4a: Public Demonstrations (*dharna* / rallies)

Regular, same time and place, growing attendance — outside the district collectorate, the SPCB, or at the site. Handle logistics: any required permission, marshals, accessibility, and a sound system for large gatherings. Momentum matters: "50 gather" becomes "gathering grows to 500."

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (gram sabha resolutions → expert finding → coalition growth → rally → NGT filing).

Step 4c: Common Opposition Failure Points (How to Prevent)

- Failure Point 1: Burnout (Months 4-8).** Prevent it: regular (not constant) meetings; celebrate milestones; fund one part-time coordinator so volunteers don't carry logistics; schedule breaks; keep a public progress tracker. Campaigns that bring in a part-time coordinator when founders tire tend to last for years; those that don't often collapse around month six.
- Failure Point 2: Coalition Conflict.** Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership. Respect that the **gram sabha** and tribal communities decide by their own processes — don't let an outside NGO speak over them.
- Failure Point 3: Competing Funding.** Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (gram sabha resolutions passed, 500 objections filed, a large rally, the NGT admitting the case) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (INR)

Item	Cost
Factsheet printing (local language)	₹9,000
Website/phone/data (annual)	₹6,000
Meeting / venue costs	₹15,000
Outreach travel (often remote areas)	₹40,000
Objection/resolution materials	₹2,000
Demonstration supplies (banners, sound)	₹20,000
Coalition meeting costs	₹15,000
Part-time coordinator honorarium (12 months)	₹2,40,000
Social-media / content (part-time, 3 months)	₹45,000
Fundraiser/event costs	₹15,000
TOTAL	₹4,07,000

Funding the campaign. Money typically comes from four places: individual donations (local collections and online fundraisers such as Milaap or Ketto, plus dedicated legal-cost appeals); grants from environmental and rights funders (long lead times, and check the foreign-funding rules that apply to registered organisations — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). A registered society or trust can receive donations and, where eligible, grants. Aim to raise half the budget by month 6 and the rest by month 12. **Reductions:** use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~₹2,40,000.

STEP 4: LEGAL CHALLENGES — THE GREEN TRIBUNAL, THE COURTS, AND VILLAGE-COUNCIL CONSENT

Time to complete: 3-24 months (depends on track)
Cost: ₹0-6,00,000 (INR; the NGT is deliberately low-cost, and a PIL can be brought cheaply)
Outcome: a suspended or refused clearance, conditions, or a project shelved

Representation impact:

- Experienced environmental lawyers before the **NGT** or a **High Court:** 35-45% favourable-outcome likelihood
- General or less specialised representation: 25-35%
- Self-representation: 5-15%
- **A key advantage:** the **NGT** is designed to be accessible — a modest filing fee, expert members alongside judges, and no need for the strict procedure of a regular court — and **PIL** lets a public-spirited person or group approach a constitutional court cheaply.

Success Rate (Legal Only): 20-30%
Success Rate (Legal + Opposition + Media): 60-70%

Indian legal strategy has three tracks, and the routing between the Green Tribunal and the constitutional courts matters.

TRACK 1: PARTICIPATION AND THE PAPER TRAIL (the front door)

Most fights are shaped here, on the record, before any tribunal is involved.

- **File objections at the SPCB public hearing.** Speak, and put written objections on the record raising real **legal grounds** — a misleading **EIA**, harm to **forest** or **wildlife**, ignored displacement, a hearing not held in the local language. Demand a proper hearing if it was skipped or relocated.
- **Get gram sabha resolutions.** Where **forest** land or forest-dwellers are affected, the affected **gram sabhas** should pass formal **resolutions** recording objection and any refusal of consent under the **Forest Rights Act**. These carry legal weight.
- **Use the RTI Act.** File **Right to Information** requests to obtain the **EIA report**, the minutes of the **EAC/SEAC**, the forest and wildlife files, and the public-hearing record. The RTI is one of the most powerful, low-cost tools a community has — it turns a closed process into a documented one.
- **Make representations to the EAC/SEAC and the Ministry.** Put your documented objections directly before the appraisal committee and the MoEFCC/SEIAA before they decide.

Why this track matters: filing well — specific, on time, grounded in the law and the evidence — plus building the RTI paper trail and the gram sabha record, often does more than any amount of noise, and it builds the case you'll need for Tracks 2 and 3.

TRACK 2: CONSENT AND THE IMPACT-STUDY LEVERS (the strongest cards)

Three grounds make this the most powerful legal tool available to Indian communities — but note *where* each is heard.

1. Gram sabha consent and forest rights (Forest Rights Act). Where a project needs **forest** land or affects forest-dwellers, the affected **gram sabhas'** consent is required, and their **community forest rights** must be settled first. The absence of genuine consent is what stopped the **Niyamgiri** mine. **Important routing:** the **NGT does not have jurisdiction over the Forest Rights Act**, so forest-rights and gram-sabha-consent challenges are taken to the **High Court** (Article 226) or the **Supreme Court** (Article 32) by **PIL** — as Niyamgiri was.

2. A defective public hearing or a misleading EIA. The **public hearing** must be genuinely held in the local language with the report available, and the **EIA** must honestly assess impacts and alternatives. A skipped or stage-managed hearing, or an EIA that omits, understates, or copies impacts, is a strong ground — and these go to the **NGT**, which can suspend the Environmental Clearance.

3. Forest, wildlife, or coastal-zone clearance defects. A forest diversion without proper clearance, a project too close to a protected area without wildlife clearance, or a violation of the **coastal zone (CRZ)** rules are strong, specific grounds — heard by the **NGT** (and, for the underlying wildlife/forest-rights questions, the constitutional courts).

Access and cost — why you can get heard. The **NGT** is deliberately cheaper and more accessible than a regular court, with a short filing deadline (an appeal against a clearance usually within **30 days**, extendable to 90); it has **expert members** who understand the science, and it can **suspend** a clearance and order **compensation and restoration**. For forest and tribal-rights matters, **PIL** opens the constitutional courts to a public-spirited person or group at low cost.

TRACK 3: THE GREEN TRIBUNAL AND THE CONSTITUTIONAL COURTS

When a clearance is unlawful, you challenge it — routing by subject matter:

- **The National Green Tribunal (NGT)** — for challenges to Environmental Clearances, pollution consents, and forest-diversion and CRZ decisions under the environmental laws. It can suspend the clearance, impose conditions, and order compensation and restoration; appeal lies to the **Supreme Court** within 90 days.
- **A High Court (Article 226) or the Supreme Court (Article 32), by PIL** — for **forest-rights and gram-sabha-consent** matters (outside the NGT's jurisdiction), for **wildlife** questions, and for constitutional environmental rights (the right to a healthy environment under Article 21).

Be realistic about two things. First, the **NGT has faced long vacancies and delays**, which can slow a case — plan for it. Second, a clearance suspended for a **curable** defect (a bad hearing, a gap in the EIA) can be **re-granted** after the defect is fixed, and projects sometimes seek **post-facto** clearance for works already begun (see Section 10). So an early win may need defending: keep opposition and media pressure alive alongside the case.

Legal Strategy Decision Tree

START: Is a public hearing or a clearance (environmental/forest/wildlife/CRZ) in process or issued?

- └ IN PROCESS → File objections + gram sabha resolutions NOW (Track 1). Use RTI.
- └ ISSUED → Note the SHORT NGT deadline (≈30 days, extendable to 90).

Q1: What kind of defect is it?

- └ Forest rights / gram sabha consent / wildlife / constitutional right
 - └ → HIGH COURT or SUPREME COURT by PIL (NGT lacks jurisdiction here).
- └ Environmental Clearance / public hearing / EIA / forest diversion / CRZ
 - └ → NATIONAL GREEN TRIBUNAL.
- └ No real defect (lawful process, you just disagree) → focus on opposition + media.

Q2: Budget?

- └ ₹0-1L → PIL by a public-spirited person/group, or an NGT appeal with legal aid / a pro bono environmental lawyer.
- └ ₹1-3L → NGT appeal or PIL with an experienced lawyer + expert evidence.
- └ ₹3-6L → Full NGT / PIL case + expert witnesses, combined with opposition + media.

Q3: Are works imminent?

- └ YES → Seek an interim STAY (from the NGT or the court) to halt works – and plan for a possible re-grant after any curable defect is fixed.
- └ NO → The case proceeds on the normal timetable.

RECOMMENDED PATHS

Path A – Clear defect: route it correctly (NGT for clearance/EIA/hearing; HC/SC by PIL for forest rights / gram sabha consent) + Track 1 record + RTI file + media. Highest ceiling.

Path B – Arguable but not clear-cut: build opposition + media; take advice; litigate if a defect crystallises.

Litigation Success Factors

Litigation succeeds when **combined** with the other steps:

- Litigation alone: 20-30%
- Litigation + opposition: 35-45%
- Litigation + opposition + media: 50-70%
- A clear defect — a missing **gram sabha consent**, a defective **public hearing**, or a misleading **EIA** — can exceed these (as at Niyamgiri), though a curable defect may be fixed and the clearance re-granted.

A tribunal or court that sees a genuine legal defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build opposition; litigate with it visible.
- **Filing in the wrong forum.** Taking a forest-rights or gram-sabha-consent matter to the **NGT** (which lacks jurisdiction) wastes time — those go to the **High Court or Supreme Court**. Route it right.
- **Missing the NGT deadline.** The window to appeal a clearance is short ($\approx$ 30 days). Move fast.
- **Weak grounds.** "This project is harmful" is an opinion, not a legal ground. "The affected gram sabhas never consented as the Forest Rights Act requires" is a ground a court can act on.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Time to complete: the full 12-month campaign

Cost: ~₹1,50,000 (INR) for trained spokespeople + ongoing support

Outcome: regular coverage reaching a large audience, political pressure on decision-makers

Success Rate (Media Only): 10-15%

Success Rate (Media + Opposition + Documentation + Legal): 60-75%

India has a large national and regional-language press, plus dedicated environmental and accountability outlets, that cover exactly these fights — and a record of that coverage shifting outcomes. The Niyamgiri struggle drew sustained national and international attention, which raised the political cost of pushing the mine through.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don't care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION

- **Bad:** "Villagers oppose the project." (no data, no specific consequence, nothing new) → ignored.

- **Good:** "All twelve gram sabhas voted against the mine; RTI documents show the EIA omitted the forest the villages depend on; the Ministry decides on [date]." → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Regional-language press** and local TV — the audience that reaches your district administration and state government.
- **National English dailies** (e.g. *The Hindu*, *The Indian Express*) — for projects with wider significance.
- **Environment and accountability outlets** — *Down To Earth* (CSE), *Mongabay-India*, *Scroll*, *The Wire*, *Article 14* — for deeper reporting on clearances, forests, and rights.
- International outlets for landmark cases (they amplified Niyamgiri).

Building Reporter Relationships (The Key)

Reporters don't ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local, regional, and specialist reporters (environment, forests, rights, local-government rounds). **Contact** them first: "I saw your piece on [similar story]. We've got a similar situation in [place] and I think your readers should know." Then keep the relationship warm over months — a relevant article, an

RTI document, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (contact five reporters)
- Month 2: first story (public-hearing objections / gram sabha resolutions)
- Month 3: press event releasing the survey/RTI findings; expert available
- Month 4: coalition announcement
- Month 5: rally coverage
- Month 6: decision-date coverage

Real Media Dynamics (Indian grounding)

- **Coverage plus mobilisation can stop a project:** Niyamgiri combined the Dongria Kondh's decades of on-the-ground organising and the gram sabha votes with sustained national and international coverage — raising the political cost until the Ministry refused clearance.
- **RTI documents make stories:** a **Right to Information** disclosure that contradicts the developer's claims — a missing forest record, a copied EIA, a stage-managed hearing — is a gift to a reporter and a court.
- **Independent evidence beats the developer's study:** independent ecological, hydrological, or health analysis that contradicts an optimistic **EIA** lets the press write "experts dispute the developer's figures," and decision-makers take notice.

Media Measurement

Track cumulative stories and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the law and the evidence — that is what gets read and acted on. The **RTI application (8E)** and the press release (8G) are among the highest-leverage messages here.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [the Ministry / SEIAA] decides [date]

Dear [Reporter],

I follow your coverage of [round / recent story]. We have something in [place] your readers should know about, and there's a clear news hook.

In one line: [gram sabha resolutions / RTI documents / independent survey] show [quantified finding – e.g. "the EIA omitted the forest 300 families depend on"], and [the Ministry / SEIAA] decides on [date].

Why it's newsworthy: it's new (just obtained), specific (affects [# people / hectares / a Scheduled Tribe community]), and time-sensitive (decision [date]).

I can share the full report and RTI documents and connect you with [one named expert] for an interview. Would a quick call this week work?

Regards,
[Name] – [Organisation] – [phone] – [email]

8B. Letter to the District Collector, the Ministry/SEIAA, or your MLA/MP

Subject: [Refuse / attach strict conditions to] [project] – clearance file [ref]

To [the District Collector / the Member Secretary, SEIAA / the MLA/MP],

I am a resident of [village/district] writing about the [project], on which a decision (Environmental / forest clearance) is expected around [date].

The concern, briefly: [one or two specific grounds – e.g. "the diversion of

forest land the villages hold community forest rights over, without the gram sabha consent the Forest Rights Act requires, and an EIA that omits it"].

I am asking you to [specific, achievable action – e.g. "refuse the clearance," or "require genuine gram sabha consent, strict conditions, and a redesign"].

[If true:] The affected gram sabhas of [villages] have passed resolutions objecting; [#] residents filed objections at the public hearing; [#] organisations share the concern.

I would welcome a meeting and can share our full evidence.

Respectfully,
[Name], [address], [phone], [email]

8C. Objection at the public hearing / gram sabha resolution

PART A – WRITTEN OBJECTION AT THE PUBLIC HEARING

To: [the State Pollution Control Board conducting the public hearing on [project]]

Objection to the [project]. Public hearing held [date].

1. Who I am: [name], [village], [interest].
 2. Grounds (with evidence):
 - a. [Forest/tribal rights] – the project takes forest land the community holds rights over; the gram sabha consent required by the Forest Rights Act was not obtained. (Attach.)
 - b. [Misleading EIA] – the EIA omits [impact], understates [impact], and [copies / contradicts] the ground reality documented here.
 - c. [Defective hearing] – the report was not made available in [language] / the venue was moved / objections were not recorded.
 3. What I ask: that the Environmental Clearance be REFUSED; alternatively, [strict conditions and a redesign].
- [Name] – [contact] – Attachments: [baseline / impact / health report]

PART B – GRAM SABHA RESOLUTION (record in the minutes)

"The Gram Sabha of [village], having considered the proposed [project], resolves that it objects to the project and does NOT consent to the diversion of the community's forest land, for the following reasons: [rights / livelihood / sacred sites / environment]. Passed on [date], [quorum] members present."

8D. Coalition outreach email (to an organisation)

Subject: [Organisation] + [project] – a specific ask that fits your work

Namaste [Name],

I'm [name] with [organisation] in [place]. We're working on [project], which [one-line stake]. I'm getting in touch because this connects directly to [organisation]'s work on [their aim].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "review the EIA and help prepare an NGT appeal," or "help the gram sabhas document and pass their resolutions," or "have your researchers assess the health impacts independently"].

If helpful, I can send a one-page brief and arrange a short call.

Thanks for considering it,
[Name] – [Organisation] – [contact]

8E. Right to Information (RTI) application (the key tool)

To: The Public Information Officer, [MoEFCC / SEIAA / State Pollution Control Board / Forest Department], [office]

Please provide the following information about [project] (file/ref [ref]):

1. The full EIA report and its executive summary, and the Terms of Reference.
2. The minutes of the Expert Appraisal Committee / SEAC meetings on this project.
3. The public-hearing proceedings, attendance, and objections recorded.
4. The forest-diversion proposal, the gram sabha resolutions received, and the Forest Advisory Committee's advice.
5. All correspondence between [the authority] and [the developer], [dates].

I enclose the prescribed fee of ₹10 [attach/adjust as applicable]. If any information is held by another public authority, please transfer this application under Section 6(3). If any part is refused, please give the specific exemption relied on and the appeal details.

[Name] – [address] – [date]

8F. Legal challenge — NGT appeal / PIL (route it correctly)

NOTE: Route by subject. Environmental Clearance / public hearing / EIA / forest-diversion / CRZ defects → NATIONAL GREEN TRIBUNAL (appeal usually within 30 days, extendable to 90). Forest-rights / gram-sabha-consent / wildlife / constitutional rights → HIGH COURT (Art 226) or SUPREME COURT (Art 32) by PIL. Contact an environmental lawyer or a legal-aid group IMMEDIATELY – the NGT deadline is short.

[NGT APPEAL / WRIT PETITION – heading as advised by counsel]

[Date]

Appellant/Petitioner: [name / registered society], [address]

Respondents: [MoEFCC / SEIAA / SPCB / the developer / State]

1. The decision challenged: [Environmental / forest clearance], ref [ref], dated [date].
2. Grounds:
 - Ground 1 – [Missing gram sabha consent / forest rights not settled] (PIL route).
 - Ground 2 – [Defective public hearing / misleading EIA] (NGT route).
 - Ground 3 – [Forest / wildlife / CRZ violation].
3. Interim relief sought: a STAY of the clearance and of works pending the case.
4. Final relief: that the clearance be SET ASIDE and the project refused.

[Name / counsel] – [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]

[Subtitle: consequence + timeliness]

[DATELINE: Place / Date]

[LEAD – answer "why now?"]

[Local organisation] released [study / RTI documents / gram sabha resolutions] today showing [specific finding] affecting [# of people / hectares / a Scheduled Tribe community].

KEY FINDINGS

- [Quantified impact with citation]
- [Quantified impact with citation]
- [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]

"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]

[The Ministry / SEIAA] decides on [date]. The appeal window at the NGT is [X].

[CALL TO ACTION] To support or file an objection: [how].

For more: [contact].

CONTACT: [Name / Organisation / Phone / Email]

ATTACHMENTS: full report, RTI documents, gram sabha resolutions, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the routing between the NGT and the constitutional courts, the budget branches, and the consent, public-hearing, and EIA levers.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because the government is pushing investment and infrastructure, because the developer's own study drives the assessment, or because appraisal committees rarely refuse. It rarely means anyone broke the law. Here is how it works — and how communities win anyway.

Important Caveat

This section describes patterns from documented Indian dynamics and public policy — "national priority" backing, developer-funded EIAs, appraisal committees that seldom reject, the practice of **post-facto** clearance, and delays and vacancies at the **NGT**. It is not a statistical claim about "X% of all decisions." Read it as: "where these patterns appear, here is what happens and what it means for opposition."

What This Tilt DOES (and DOESN'T DO)

DOES: create financial and political incentive to approve (revenue, jobs, mining **royalties**, "national priority" status); bias information (developer-funded **EIAs** read optimistically, and cases of copied or misleading EIAs are documented); advantage well-resourced developers (better consultants, lawyers, appeals); let projects that started work seek **post-facto** regularisation; and slow relief through **NGT** vacancies and delays.

DOESN'T: guarantee approval; make opposition impossible; remove the **gram sabha's** consent power or the constitutional protections; or prevent suspensions, conditions, and delay.

Analogy: a tilted system is like playing on a pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, your legal grounds cleaner and correctly routed, and your **RTI** paper trail solid.

Documented Indian Dynamics

Consent and documentation can stop a project (Niyamgiri). Despite strong backing for the mine, it was stopped in 2013-14 after the Dongria Kondh documented their rights, the Supreme Court referred the decision to the gram sabhas, and all twelve refused.

Lesson: even a well-backed project can fall when documentation, the gram sabha, and the courts line up.

Appraisal rarely says no; post-facto clearance regularises the fait accompli. Most projects that reach the Expert Appraisal Committee are cleared, and projects that began work without clearance have sought — and sometimes obtained — **post-facto** clearance, a practice the Supreme Court has criticised. **Lesson:** don't rely on the committee refusing; build the record, the gram sabha resolutions, and the legal grounds so a tribunal or court has something concrete to act on.

Developer-funded studies. EIAs are commissioned by the developer's consultants. Independent survey and mapping work — and **RTI** disclosures — that contradict them are among the most valuable things a campaign can produce.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): an ordinary state clearance with genuine scrutiny; no "national priority" label; a clear legal defect; forest/tribal rights engaged (giving the gram sabha a say). → 65-75% with all 5 steps. Proceed with standard opposition.

YELLOW FLAG (moderate tilt): strong pro-investment push and a developer-funded **EIA**, but independent evidence is possible and a legal ground (consent, hearing, EIA) is arguable. → 40-45% with all 5 steps; often win conditions and delay even if not a refusal. Proceed; prioritise the gram sabha consent and the EIA/hearing defects.

RED FLAG (high tilt): a national-priority project, developer-only studies, heavy political backing, and a possible **post-facto** route. → 25-30% to stop; 50-60% to modify/delay. Decide whether delay/conditions justify the investment; lead with the cleanest ground (gram sabha consent, forest rights) via the right forum; build power and a record for the next round.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

When clearance and legal routes are exhausted, some Indian communities and movements have used non-violent direct action — sit-ins (*dharna*), fasts, rallies, road and site blockades, and long-running mass movements. This is descriptive of what has occurred, not guidance.

Documented consequences and risks under Indian conditions: protesters can face **FIRs** (police cases) and criminal charges, preventive detention, and — in the most serious documented instances — police firing (as in Thoothukudi, Tamil Nadu, in 2018, where police firing on anti-pollution protesters killed thirteen people). Organisers and NGOs have faced criminal cases, and stringent laws have at times been used against activists. Anyone considering direct action — or even visible organising in a high-conflict area — should take the physical and legal risk seriously, avoid acting alone, keep the action non-violent and well-documented, line up **legal aid** in advance, and stay connected to human-rights organisations (such as the PUCL and legal-aid networks) and the press. Direct action has produced delay and disproportionate attention in documented cases, but on its own rarely stops a project permanently; combined with documentation, the gram sabha, the NGT/courts, and media it is more consequential — and safer.

Honest Assessment

Where the system is tilted, opposition using clearance and legal methods has lower odds of an outright stop — but still reliably wins suspensions or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record for the NGT and the courts. And India offers genuine equalisers: a dedicated **Green Tribunal, PIL** that opens the constitutional courts to ordinary citizens, the **gram sabha's** consent power over forest and tribal land, and the **RTI Act** that prises the file open. Neither scenario makes opposition futile.

SECTION 10: WHEN IT'S ACTUAL CORRUPTION (AND HOW TO EXPOSE IT)

Section 9 covered a system **tilted toward approval** — pressures that are usually lawful. This section covers something narrower and more serious: **actual corruption** — the unlawful or unethical use of a public position for private benefit, or improper influence over a decision. It is rarer than ordinary bias, but where it exists it is both a wrong worth exposing and, strategically, a project's single greatest vulnerability. India has strong bodies to receive these matters — but handle them carefully, because getting the facts wrong exposes you to a criminal-defamation case.

What counts as corruption (a spectrum from illegal to merely unethical)

- **Bribery and abuse of office** (offences under the **Prevention of Corruption Act 1988**) — money, jobs, or favours in exchange for a clearance or a decision, or a public servant abusing office for gain.
- **Rigged allocation of public resources.** India's largest such scandals involved handing out public assets without fair process: the **coal-block allocation scam ("Coalgate")**, exposed by a report of the **Comptroller and Auditor General (CAG)**, led the **Supreme Court in 2014 to cancel more than 200 coal-block allocations** as arbitrary and illegal — a mining-and-environment case at its core.
- **Undisclosed conflicts of interest** — a decision-maker with a hidden stake (land near the site, an interest in the developer, a family tie) who does not step aside.
- **The revolving door** — officials and the developer's staff or consultants moving between each other.
- **Improper gifts, hospitality, or political funding** flowing from a developer to the people deciding its project.
- **Falsified or copied studies** — an **EIA** with fabricated data or plagiarised from another project.
- **Insider land dealing** — acquiring affected land using non-public knowledge of a coming clearance or land-use change.

Red flags to watch for

- A clearance granted despite the technical committee's or the Forest Department's negative view, with thin or shifting reasons.
- Sudden reversals, rushed timelines, or a clearance pushed through quietly.
- An official who did not step aside despite a personal interest.
- Off-record meetings between the developer and decision-makers.
- Gifts, hospitality, trips, or political donations flowing from the developer to decision-makers or their families.
- A decision-maker — or a relative — owning affected land or an interest in the developer.
- The same small circle of firms, consultants, and officials recurring across clearances.
- Files "not traceable," or information refused under the **RTI**.

How to document and investigate it (follow the money — carefully)

- **RTI requests** for correspondence, committee minutes, contracts, and the clearance file (and appeals to the Information Commission if refused).
- **The CAG's reports** and audit findings on the sector or project.
- **Company and land registries** — who owns the affected land and who profits; the Registrar of Companies filings.
- **Election and political-funding records** — check whether the developer funded decision-makers.

- **Committee minutes and technical opinions** — compare the decision to the appraisal recommendation.
- **Build a timeline:** interest or donation → meeting, gift, or contract → decision. Corruption is almost always shown by **pattern and timing**, not a confession.
- **Whistleblowers** often break these stories — but be aware that **RTI users and whistleblowers in India have faced serious retaliation, including violence**; protect their identities and take security seriously.

The legal lever: a tainted or arbitrary decision can be undone

Two features make this powerful. First, a clearance granted through an **arbitrary or mala fide** process, or tainted by an undisclosed interest, can be **quashed** by a court on **PIL** or by the **NGT** — the Coalgate allocations were cancelled as arbitrary, without any need to convict anyone first. Second, the offences under the **Prevention of Corruption Act** can be pursued by the investigating agencies. So documenting a tainted process can be both a **ground to undo the clearance** and a matter for the anti-corruption bodies.

Where to report it

- The **Central Bureau of Investigation (CBI)** and the **Central Vigilance Commission (CVC)** — for central public servants; the state **Anti-Corruption Bureau** for state officials.
- The **Lokpal** (national) and the state **Lokayukta** — the anti-corruption ombudsmen.
- The **Enforcement Directorate (ED)** — for money-laundering aspects.
- The **CAG** — for audit of public spending and allocations.
- **Investigative outlets** — the national and regional press and accountability websites — in parallel with the official channels.

Strategy: exposing a tainted process can beat a project

A credible, documented corruption story does several things at once: it triggers an investigation; it can get the clearance quashed as arbitrary; it flips media coverage from "local dispute" to "scandal"; it splits the political support behind the project; and it damages the developer's reputation and financing. **Exposing a tainted process is often more powerful than arguing inside it** — the Coalgate revelations reshaped the politics of resource allocation nationally.

Do this responsibly — and safely

- **Stick to documented facts.** Publish the records and the timeline and let readers draw conclusions; frame anything unproven as a question, not an accusation.
- **Mind criminal defamation.** Publicly accusing a named person of a crime you cannot prove is legally dangerous in India (criminal defamation still exists). Work with a lawyer and an experienced journalist before publishing allegations.
- **Report through the CBI/CVC/Lokpal/ED and the courts in parallel** with any media, so there is a formal record and an investigation can follow.
- **Protect whistleblowers, RTI users, and yourself.** Retaliation is real; use pseudonymised complaints where possible and stay connected to human-rights and legal-aid networks.
- **Don't cry "corruption" without evidence.** Calling ordinary, lawful bias (Section 9) "corruption" destroys your credibility and can expose you to a claim. Keep the two separate — which is exactly why they are separate sections here.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys and map forest/human use (Step 2); convene the affected gram sabhas and form or partner with a registered body (Step 3); prepare for the **public hearing**, file first **RTI** requests, and make first reporter contacts (Steps 4-5). *Outcome:* structure forming, the record and paper trail beginning.

Months 2-3 — Public Launch: baseline complete; community meeting + objections at the public hearing + **gram sabha resolutions** (Steps 3-4); media event (Step 5). *Outcome:* opposition visible, objections and resolutions on the record, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the **EIA** (Step 2); expand the coalition and bring in an NGO/university and a forest-rights organisation (Step 3); prepare the **NGT appeal or PIL**, routed correctly (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal grounds identified and routed, coverage expanding.

Months 4-6 — Expansion + Health Data: health/livelihood report (Step 2); sustained rallies (Step 3); the clearance decision (Step 4); expert press events (Step 5). *Outcome:* possible refusal or strict conditions, quantified impacts, regional media.

Months 6-9 — Escalation + Challenge: rallies escalating (Step 3); if cleared, file the **NGT appeal** (within ~30 days) or the **PIL**, with an interim-stay application (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, case live.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); hearing / positioning (Step 4); media momentum (Step 5). *Outcome:* clearance + opposition + media + law compound; suspension, conditions, or the project shelved.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — "the gram sabhas never consented," not "we oppose the project."
2. **Multi-tactic pressure** — objections + gram sabha resolutions + opposition + media + legal, together.
3. **Long-term organising** — sustain 12+ months; prevent burnout; keep people safe.
4. **Documentation first** — build the evidence (including forest use and who lives there), then object and litigate on it.
5. **Coalition building** — 5-10 diverse groups; respect the **gram sabha** and tribal communities' own processes.
6. **Use the gram sabha and the RTI** — the consent power and the paper trail are distinctively strong Indian levers.
7. **Route the law correctly** — NGT for clearance/EIA/hearing; High Court/Supreme Court by PIL for forest rights and gram-sabha consent.
8. **Realistic expectations** — expect conditions/modifications/delay; a refusal or shelving is the bonus; expect possible post-facto and re-grant moves.
9. **Persistence and safety** — plan for 12-24 months (and possibly several forums), keep momentum, and protect organisers and RTI users.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); coalition members leaving (conflict or leadership problem); no media coverage for 2-3 months; the case stalling on **NGT** vacancies or a **post-facto** re-grant; fundraising below half your target by month 6; a core organiser leaving without a successor; threats or **FIRs** against organisers (treat as a safety/legal emergency — see Section 9); or someone new pushing illegal or reckless tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Clearance refused / project shelved** (rarer): usually needs overwhelming opposition + a strong consent or EIA/hearing case + heavy media + lower tilt. Niyamgiri (mine stopped) shows it happens.
- **Clearance modified** (most common victory): strict conditions, genuine rehabilitation and compensation, buffers, independent monitoring, redesign — often via the authority, the **NGT**, or a court.
- **Delay / attrition:** stalled for years while clearance and litigation run; costs mount and financiers lose confidence; the developer sometimes walks away.
- **Defeat:** the project proceeds (sometimes via a **post-facto** clearance or a re-grant after a curable defect). Focus then shifts to enforcing conditions and rehabilitation, monitoring compliance, and the next opening.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live and correctly routed, the gram sabha and RTI record is strong, opposition is holding or growing, media is at least monthly, the coalition is stable, and organisers are safe.

Modify if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, or you discover the system is more tilted than assessed.

Reassess if, after ~12 months (and perhaps the NGT and a court), clearance and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, or resources are gone — or if the personal or legal risk to organisers has become unacceptable. Ask: has opposition already won partial victory (conditions, rehabilitation, delay)? Would more effort win more, or just prolong the fight? Should energy shift to enforcing conditions, to the next project, or to changing the policy?

The Bottom Line

Opposition work can stop or significantly modify destructive projects in India — even where investment, **royalties**, and "national priority" politics point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, before the **NGT**, and in the constitutional courts. Where the system is tilted, an outright stop is less likely, but opposition still delivers suspensions, conditions, rehabilitation, delay, and durable power.

And India offers genuine equalisers: a dedicated **Green Tribunal** that is cheaper and faster than a regular court, **PIL** that opens the constitutional courts to ordinary citizens, the **gram sabha's** consent power over forest and tribal land, the **RTI Act** that prises the file open, and courts that read the right to a healthy environment into the right to life — and, when a project truly cannot lawfully proceed, the possibility of outright refusal, as at Niyamgiri.

Know your situation. Assess how tilted the system is, honestly. Watch for genuine corruption and refer it to the anti-corruption bodies. Keep organisers and RTI users safe. Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers.

RESOURCES (verified)

Legal help and the tribunal:

- The **National Green Tribunal (NGT)** — *greentribunal.gov.in* — Principal Bench in Delhi and zonal benches in Bhopal, Pune, Kolkata, and Chennai; for challenges to Environmental Clearances and pollution/forest-diversion/CRZ decisions.
- The **High Court / Supreme Court** by **PIL** — for forest-rights, gram-sabha-consent, wildlife, and constitutional environmental-rights matters.
- Environmental legal-aid and pro bono lawyers, and law-school environmental clinics.

Find and track the project:

- The **EIA report** and clearance file via the MoEFCC **Parivesh** portal (*parivesh.nic.in*) and the state SEIAA/SPCB.
- The forest-diversion and gram sabha record via the Forest Department and the district administration.

Transparency: the **Right to Information Act 2005** — file with the relevant Public Information Officer; appeal to the State/Central Information Commission if refused.

Integrity and anti-corruption: the **CBI**; the **CVC** (*cvc.gov.in*); the **Lokpal** and state **Lokayuktas**; the **Enforcement Directorate**; the **CAG** (*cag.gov.in*).

Support and safety: legal-aid services (the **NALSA**/State Legal Services Authorities); human-rights organisations (such as the PUCL); and forest-rights and tribal networks. Report threats to the police and, if needed, seek protection through the courts.

Environmental and accountability media: *Down To Earth* (CSE); *Mongabay-India*; *The Hindu*; *The Indian Express*; *Scroll*; *The Wire*; *Article 14*; and the regional-language press.

Nothing here is legal advice. The clearance rules and forest laws have been amended in recent years and some changes are under challenge, and deadlines and procedures vary — get current advice from an environmental lawyer or a legal-aid group before relying on this.

GLOSSARY

Terms are listed alphabetically. Words shown in **bold** in the guide are the ones defined here.

- **CAG (Comptroller and Auditor General):** the constitutional auditor of government; its reports have exposed major scandals.
- **CBI / CVC:** the Central Bureau of Investigation and the Central Vigilance Commission — central anti-corruption bodies.
- **Community forest rights:** the collective rights of forest-dwelling communities over forest land and resources, recognised under the Forest Rights Act.
- **Conflict of interest:** a decision-maker's private stake in a matter they decide; if undisclosed, it can taint and undo the decision.
- **CRZ (Coastal Regulation Zone):** the regime regulating development in coastal areas; projects there need CRZ clearance.
- **EAC / SEAC:** the Expert Appraisal Committee (central) and State Expert Appraisal Committee — the technical bodies that appraise impact assessments and recommend on Environmental Clearance.
- **EIA report / EIA Notification 2006:** the Environmental Impact Assessment report, and the 2006 rules (under the Environment (Protection) Act 1986) that require it, a public hearing, and clearance for listed projects.
- **Environmental Clearance (EC):** the approval required before a listed project can be built or expanded, granted by the MoEFCC (Category A) or the state SEIAA (Category B).
- **Forest (Conservation) Act 1980:** requires central approval to divert forest land to non-forest use.
- **Forest Rights Act 2006:** recognises the rights of forest-dwelling Scheduled Tribes and other traditional forest-dwellers, and makes the gram sabha's consent central to forest diversion.
- **Gram panchayat / gram sabha:** the elected village council, and the assembly of all adult villagers — a statutory body whose resolutions carry legal weight, and whose consent is required for forest diversion.
- **Jan sunwai:** a public hearing / people's hearing.
- **Lokpal / Lokayukta:** the national and state anti-corruption ombudsmen.
- **MoEFCC:** the (Union) Ministry of Environment, Forest and Climate Change.
- **National Green Tribunal (NGT):** a dedicated statutory environmental court (NGT Act 2010) that hears environmental cases quickly and with expert members; it can suspend clearances and order compensation — but has no jurisdiction over the Forest Rights Act or the Wildlife (Protection) Act.
- **PESA 1996:** the law extending panchayat powers, including gram sabha powers, to Scheduled (tribal) Areas.
- **PIL (Public Interest Litigation):** a case a public-spirited person or group can bring in a High Court (Article 226) or the Supreme Court (Article 32) on behalf of those who cannot easily approach the court.
- **Post-facto clearance:** clearance sought or granted after a project has already begun work — a practice the Supreme Court has criticised.
- **Prevention of Corruption Act 1988:** the main law against bribery and abuse of office by public servants.
- **Public hearing:** the stage of the clearance process, run by the State Pollution Control Board, where affected people can raise objections on the record.
- **RTI Act 2005 (Right to Information):** the law letting any citizen obtain information from public authorities — a central transparency tool.
- **Royalties:** payments to the state from mining and resources, creating a financial incentive to approve.
- **Scheduled Tribe:** a community recognised under the Constitution as entitled to special protection, including forest and tribal-

area rights.

- **SEIAA / SPCB:** the State Environment Impact Assessment Authority (grants Category B clearances) and the State Pollution Control Board (runs the public hearing, issues pollution consents).
- **A system tilted toward approval:** the situation where the bodies deciding on a project lean toward approving it — because of the push for investment, because the developer's own study drives the assessment, or because committees rarely refuse — usually without anyone breaking the law.
- **Wildlife (Protection) Act 1972:** protects wildlife and protected areas; projects near them need wildlife clearance.